



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing nine judgments on Tuesday 29 May 2018 and eight judgments and / or decisions on Thursday 31 May 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 29 May 2018

[Bikić v. Croatia \(application no. 50101/12\)](#)

The applicant, Ivanka Bikić, is a Croatian national born in 1954. The case concerns her complaint about the authorities' refusal to let her buy a flat in Zagreb where she has been living for the last 30 years.

In the former Yugoslav socialist regime all employees contributed to housing funds which were used to build blocks of flats. The flats were then distributed to employees under what was called a "specially protected tenancy". In 1988 Ms Bikić was granted such a tenancy by her then employer and she moved into the Zagreb flat. However, the decision was not final and no formal decision has since been taken confirming her entitlement to a specially protected tenancy as, in the meantime, various proceedings have been brought before the courts about the flat.

In particular, in 1990 colleagues of Ms Bikić brought proceedings to challenge her place on the priority list for the distribution of flats. Although these claims were subsequently dismissed, in 2008 the courts rejected Ms Bikić's civil claim against the local authorities seeking to buy the flat, finding that she had never acquired a protected tenancy of the flat. In 2012 the Constitutional Court upheld the lower courts' finding and dismissed her complaint. It pointed out in particular that the courts had previously found in favour of other persons who had been granted protected tenancies which they had then lost, but that Ms Bikić's case was different as she had never actually had such a right.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention on Human Rights, Ms Bikić complains about the refusal of her request to buy the flat, arguing that the only reason why she has not been formally granted a protected tenancy is because of the delay in the civil proceedings.

[Dornean v. the Republic of Moldova \(no. 27810/07\)](#)

The applicant, Leonid Dornean, is a Moldovan national who was born in 1951 and lives in Trinca (the Republic of Moldova).

The case concerns his complaint that he was beaten and assaulted by his ex-wife and adult children and that the authorities failed to investigate his allegations properly.

Between 2005 and 2007 Mr Dornean complained to prosecutors of various incidents of assault by his ex-wife and children.

In particular, in December 2006 they allegedly assaulted him at their home and broke his left elbow. Investigators looked at this complaint on and off for four years, but the investigation was eventually discontinued in 2010.

Relying on Article 3 (prohibition of torture and of inhuman or degrading treatment) of the European Convention, Mr Dornean complains that there has been no effective investigation into his allegation of ill-treatment by his ex-wife and children.

[Goriunov v. the Republic of Moldova \(no. 14466/12\)](#)

The applicant, Igor Goriunov, is a Moldovan national who was born in 1968 and is detained in Rezina (Republic of Moldova).

The case concerns the fact that Mr Goriunov, who is serving a life sentence for murder, was for several months placed in handcuffs every time he left his cell.

The punishment of wearing handcuffs outside his cell was imposed on Mr Goriunov in July 2011, four months after a mobile telephone had been found there. He complained unsuccessfully to the domestic courts about the measure, which lasted for about five months.

Relying on Article 3 (prohibition of inhuman or degrading treatment), he complains that he was subjected to inhuman and degrading treatment through being forced to wear handcuffs for no particular reason.

[Pocasovschi and Mihaila v. the Republic of Moldova and Russia \(no. 1089/09\)](#)

The applicants, Ruslan Pocasovschi and Ion Mihăilă, are Moldovan nationals who were born in 1975 and 1976 and live in Cahul and Cetireni (Republic of Moldova) respectively.

The case concerns the applicants' complaints about being kept in a prison whose electricity and water supplies had been cut off.

Mr Pocasovschi and Mihaila were serving sentences in Prison no. 8 in Tighina/Bender in Moldova's Transdnistria region. The prison is run by the Moldovan authorities, however, the Bender town administration is under the control of the separatist "Moldavian Republic of Transdnistria".

In September 2002 the town cut off the prison's water, power and heating supplies, with water and electricity not being reconnected until February 2003. However, the prison was cut off again in July of the same year, with the "MRT authorities" insisting that the prison had to be closed down.

Mr Pocasovschi and Mr Mihaila, who had tuberculosis, remained at the prison all this time, and were not transferred until 2004. The applicants and other detainees, helped by the Helsinki Committee for Human Rights, put pressure on the Moldovan authorities to improve conditions at the jail and launched civil compensation claims. They were awarded compensation in June 2009.

The applicants complain of inhuman conditions of detention under Article 3 (prohibition of torture and inhuman treatment), of the excessive length of their compensation proceedings under Article 6 § 1 (right to a fair trial within a reasonable time) and of a lack of effective remedies for their complaints under Article 13 (right to an effective remedy) in conjunction with the other Articles.

[OOO KD-Konsalting v. Russia \(no. 54184/11\)](#)

The applicant company, OOO KD-Konsalting, is a limited-liability company based in Moscow.

The case concerns the seizure and retention by the authorities of several tonnes of zinc belonging to the applicant company to serve as evidence in criminal proceedings, and the disappearance of the seized zinc from the depot where it had been stored.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicant company complains of interference with its right of property owing to the seizure and retention of its goods, which it alleges were unjustified, the authorities' failure to safeguard its storage and the refusal of the domestic courts to compensate it for the alleged damage.

[Gülbahar Özer and Yusuf Özer v. Turkey \(no. 64406/09\)](#)

The applicants, Gülbahar Özer and Yusuf Özer, are Turkish nationals who were born in 1963 and 1965 respectively and live in İzmir (Turkey). They are sister and brother.

The applicants' respective children, Sibel Sartık and Nergiz Özer, aged 24 and 15, were killed by soldiers on 19 January 2005 in southeast Turkey. When the applicants tried four days later to take their bodies for burial in the city of Siirt, they were stopped by soldiers and the bodies were confiscated as the local governor had ordered that the bodies be buried elsewhere owing to disturbances in Siirt cemetery. The local authorities eventually buried them in Erüh in the early hours of the following morning, without a religious ceremony.

The applicants applied to the domestic courts for permission to move the bodies to a cemetery of their own choice, but their request was refused. The final decision, by the Supreme Administrative Court, was communicated to them in March 2009.

Relying in particular on Article 8 (right to respect for private and family life), the applicants complain about the refusal to allow them to bury their children where they wanted. They also raise complaints under Article 3 (prohibition of torture and inhuman or degrading treatment), Article 9 (freedom of thought, conscience and religion), Article 13 (right to an effective remedy) and Article 17 (prohibition of abuse of rights) on the basis of the same facts.

[Mihdi Perinçek v. Turkey \(no. 54915/09\)](#)

The applicant, Mihdi Perinçek, is a Turkish national who was born in 1957 and lives in Diyarbakır (Turkey).

The case concerns the killing of Mr Perinçek's son by the police and his allegation that the domestic authorities failed to carry out a proper investigation into his death.

Mr Perinçek's son, Şiyar, was shot by a police officer on 28 May 2004 during an operation which the police said was aimed at preventing a terrorist attack by the PKK. The son died later in hospital. The trial court acquitted the police chief in March 2007, finding that he had acted in self-defence.

Mr Perinçek, who acted as an intervener in the trial, appealed against the acquittal and argued that the police's version was false. He alleged that the police officer had shot his son at close range and that his son had been unarmed. He pointed to many alleged irregularities in the investigation. His appeal was dismissed in March 2009.

Relying on Article 2 (right to life) and Article 13 (right to an effective remedy), Mr Perinçek complains that the police killed his son unlawfully and that no effective investigation into the incident was carried out.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Kovyazin v. Russia (no. 50043/14)

Salakhbekov and Abukayev v. Russia (nos. 28368/09 and 28636/09)

Thursday 31 May 2018

[Bagniewski v. Poland \(no. 28475/14\)](#)

The applicant, Jacek Bagniewski, is a Polish national who was born in 1965 and lives in Bydgoszcz (Poland).

The case concerns the dismissal of an action to disclaim paternity brought by a prosecutor on Mr Bagniewski's behalf.

In September 1995 Mr Bagniewski married his partner. In February 1997 the latter gave birth to a son. Mr Bagniewski, being the child's mother's husband, was registered as the father in the civil status register. The couple divorced a few years later.

Subsequently, Mr Bagniewski began to entertain doubts as to his paternity of the child and ordered a non-judicial DNA test (identification by genetic sampling), providing samples both from himself and from the child, in his submission. The test results established that there was no biological link between the two persons sampled.

Mr Bagniewski then asked the prosecutor to lodge an action to disclaim paternity. During the proceedings the Bydgoszcz District Court ordered a DNA test, which the child and the mother refused to undergo. In December 2012, on the basis of the non-judicial DNA test ordered by Mr Bagniewski, the District Court ruled that the latter was not the child's biological father. On appeal by the child's mother, the Bydgoszcz Regional Court dismissed Mr Bagniewski's action to disclaim paternity on the grounds that the non-judicial DNA test contested by the child's mother could not be considered as decisive evidence in the framework of the civil proceedings and that Mr Bagniewski could not use the child's refusal to undergo DNA testing to draw conclusions contrary to the latter's best interests.

Relying on Article 8 (right to respect for private and family life) and Article 14 (prohibition of discrimination), Mr Bagniewski complains about the dismissal of the action to disclaim paternity, submitting that he was discriminated against during the civil proceedings before the domestic courts. Relying on Article 6 § 1 (right of access to a tribunal), he complains that he was unable to apply to the Supreme Court to complain about what he saw as the arbitrary interpretation of the facts of the case by the lower-level courts.

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Dimova-Ivanova and Ivanov v. Bulgaria (no. 58497/10)

Kutbettin v. Cyprus (no. 21771/14)

Ramishvili v. Georgia (no. 48099/08)

Demir v. Germany (no. 67976/11)

Caruana v. Malta (no. 41079/16)

Krasikov and Others v. Russia (nos. 25795/06, 43092/09, and 5491/10)

Milijić v. Serbia (no. 58811/16)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.